

Court No. - 40

Case :- WRIT - C No. - 39076 of 2022

Petitioner :- Ahmad Noor

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Arun Kumar Tripathi, Nasim Uddin

Counsel for Respondent :- C.S.C., Pranjal Mehrotra

Hon'ble Mahesh Chandra Tripathi, J.

Hon'ble Vivek Kumar Singh, J.

Heard learned counsel for the petitioner and learned Standing Counsel for the State and Sri Pranjal Mehrotra, learned counsel for respondent No.3/Paschimanchal Electricity Distribution Corporation Limited, Bilaspur, Rampur.

By means of the present writ petition, the petitioner is challenging impugned recovery certificate dated 27.10.2021 (annexure-2 to the writ petition) issued by respondent no.3.

Sri Pranjal Mehrotra, learned counsel for respondent No.3/Paschimanchal Electricity Distribution Corporation Limited, Bilaspur, Rampur raised a preliminary objection regarding maintainability of the present writ petition on the ground that the Uttar Pradesh Electricity Supply Code, 2005 is a Code in itself. He submits that since the present matter relates to recovery of dues for the use of electricity, the petitioner has an efficacious remedy to file an appeal under Provision 6.14 of the Uttar Pradesh Electricity Supply Code, 2005.

At the outset learned counsel for the petitioner submits that the petitioner is ready to deposit the outstanding amount.

Considering the objections, so raised by learned counsel for the Corporation, we are not inclined to entertain the writ petition. The petitioner has an efficacious remedy to take recourse under Provision 6.14 of the Uttar Pradesh Electricity Code, 2005. It is always open for the petitioner to avail the remedy available to him under the Code, 2005. The Court hopes and trusts that the competent authority shall proceed with the matter strictly in accordance with law.

With the aforesaid observations and leave, the present writ petition stands disposed of.

Order Date :- 2.1.2023

Dev/-